



File No.: EXP202406573

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on April 4, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right to erasure against the CITY COUNCIL OF BURGOS (hereinafter, the respondent) without their request receiving the legally established response.

The complainant states that they are an employee of the Accessibility, Mobility, and Transport Service of the City Council of Burgos, the respondent.

They further report that on February 14, 2024, during their workday, the Accessibility, Mobility, and Transport Service (SAMYT) disclosed their personal data to the emergency service 112 without their authorization.

Subsequently, on February 22, 2024, the complainant submitted a written request to the respondent's registry asking for their personal phone number to be removed from their employee record, which they claim is accessible to all employees.

Finally, the complainant indicates that on April 5, 2024, they received another call to their personal number from SAMYT and that they have been able to verify that their personal number still appears in their employee record on the respondent's website.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. No response has been received to this forwarding.

THIRD: The result of the forwarding procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on July 4, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days they could present any arguments they deemed appropriate, summarizing the following arguments:

The City Council of Burgos states that the complainant is an employee of the municipal transport service in the category of driver-receptor.

They then clarify the reason for the disclosure of the complainant's phone number to 112. They explain that, on the specified date, the complainant notified the Inspector's Room requesting medical assistance through 112 because there was a passenger who required it due to an accident. When the Line Inspector called 112, they were asked for a series of details about the injured person (age, sex, consciousness, whether there is bleeding, etc.), so, given the urgency of the situation, they provided the driver's phone number, as they were the only one who could provide the required information to assist the injured person adequately.

Regarding the call to their personal number on April 5, they state that it was made to communicate the execution of a service the following day.

Attached to their written arguments are the following documents:

- Accident Report
- Technical Report.

Finally, they claim to be unaware of which website the complainant is referring to.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that within ten working days they may present any arguments they consider

appropriate, summarizing the following arguments:

They assert that all vehicles in the SAMYT fleet have a telephone line (for vehicle location and communication with the inspection room). This is the means through which all types of communication between the inspection room and the vehicle driver are usually conducted to resolve any incidents.

Therefore, they consider the use of their personal number unnecessary to resolve any of the previously mentioned situations, as the vehicle has a phone number. Furthermore, they believe that if it were deemed necessary to maintain communications via a means other than the vehicle's telephone line, it should be SAMYT that provides the necessary means to the workers.

They also state that the City Council of Burgos has been using a website for years to provide payroll to its employees and that their phone number still appears on that website, although a change has occurred on it after their initial complaint.

They conclude their writing by insisting that the disclosure of their data has not been explained instead of using the line installed in the bus and that their phone number has not been removed.

Attached to their written arguments are the following documents:

- Video of access to the City Council of Burgos portal where their personal data can be seen.

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FIFTH: A new hearing was granted to the responding party regarding such statements, and through a document submitted on 11/09/2024, they stated, in summary, the following:

First, in relation to the existing communication system with the buses, they clarify that it is an intercom that connects only the control center with the buses, and calls cannot be made to the outside from the buses nor received.

On the other hand, regarding the reference to the website where the claimant's personal data appears, they specify that it is not a public access page but rather the employee portal, which can only be accessed using a personal password, and each employee only accesses their own information (their payslips, personal file data, etc.), not that of others. The current portal has been operational since April 2024. The employee's phone number is a piece of information that is included in their personal file (which is consulted through the employee portal) and, in the opinion of the Human Resources department of the Municipalized Transport and Mobility Service, the contact phone number is essential for service provision. They provide the example that if they receive a notice that a worker has not reported to their line, they need to have the ability to contact the employee immediately to determine whether it is merely a delay (the worker is on their way to work and is stuck in traffic, has overslept and is on their way, etc.) or if they have suffered an incident that prevents them from reporting to work that day.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it.

in its Article 57, among others, the obligation to enforce the Regulation and promote awareness among the controllers and processors regarding their obligations, as well as to address the complaints submitted by an interested party and investigate, as appropriate, the reasons for such complaints. Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, the complaint was forwarded to the respondent party for analysis, requiring them to respond to this Agency within one month and to demonstrate that they had provided the complainant with the appropriate response. The outcome of this forwarding did not satisfy the claims of the complainant. Consequently, on July 4, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to address any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a

concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the data controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the data controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), in so far as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

V

Conclusion

During the processing of this procedure, the entity being complained about has responded to this Agency, but does not demonstrate having responded to the complaining party, sending them the required response to their request.

Thus, it cannot be accepted that the response that should be given can be expressed merely as part of an administrative procedure, such as the submission of allegations regarding this procedure, which was initiated precisely due to the improper handling of the request in question.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the controllers are obliged to issue, even in cases where there are no data in the files or even in those cases where it does not meet the stipulated requirements, in which case the recipient of such request is also obliged to require the rectification of the observed deficiencies or, where appropriate, to deny the request with reasons indicating the causes for which the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that no copy of the necessary communication that must be directed to the complaining party

informing them about the decision made regarding the request for the exercise of rights is attached, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO ESTIMATE the claim made by A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge the AYUNTAMIENTO DE BURGOS with NIF P0906100C, to send to the claiming party, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: TO NOTIFY this resolution to A.A.A. and to AYUNTAMIENTO DE BURGOS.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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